

STATE OF NEW YORK

11121--A

IN ASSEMBLY

April 24, 2026

Introduced by M. of A. GIBBS -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the alcoholic beverage control law, in relation to permitting certain members of the state liquor authority or officers, deputies, assistants, inspectors or employees thereof to be a member of a board of education

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 16 of the alcoholic beverage control law, as
2 amended by chapter 731 of the laws of 1971, is amended to read as
3 follows:

4 § 16. Disqualification of members and employees of authority. No
5 member of the authority or any officer, deputy, assistant, inspector or
6 employee thereof shall have any interest, direct or indirect, either
7 proprietary or by means of any loan, mortgage or lien, or in any other
8 manner, in or on any premises where alcoholic beverages are manufactured
9 or sold; nor shall ~~he~~ **they** have any interest, direct or indirect, in
10 any business wholly or partially devoted to the manufacture, sale,
11 transportation or storage of alcoholic beverages, or own any stock in
12 any corporation which has any interest, proprietary or otherwise, direct
13 or indirect, in any premises where alcoholic beverages are manufactured
14 or sold, or in any business wholly or partially devoted to the manufac-
15 ture, sale, transportation or storage of alcoholic beverages, or receive
16 any commission or profit whatsoever, direct or indirect, from any person
17 applying for or receiving any license or permit provided for in this
18 chapter, or hold any other public office in the state or in any poli-
19 tical subdivision except upon the written permission of the liquor
20 authority, such member of the authority or officer, deputy, assistant,
21 inspector or employee thereof may hold the public office of notary
22 public or member of a **[community]** board of education ~~[in the city school~~
23 ~~district of the city of New York]~~. ~~[Any one]~~ **Anyone** who violates any of
24 the provisions of this section shall be removed.

25 § 2. This act shall take effect immediately.

EXPLANATION--Matter in **italics** (underscored) is new; matter in brackets
[-] is old law to be omitted.

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